



Reprinted
January 28, 2026

SENATE BILL No. 163

DIGEST OF SB 163 (Updated January 27, 2026 4:05 pm - DI 120)

Citations Affected: IC 6-1.1; IC 6-3.1; IC 36-2; noncode.

Synopsis: Various property tax matters. Repeals the sunset for the county option circuit breaker tax credit, which is set to expire January 1, 2028. Eliminates the assessed value cap that applies to the property tax deduction for a veteran who: (1) has a total disability; or (2) is at least 62 years of age and has at least a 10% disability. Adds provisions to: (1) limit the entry onto a taxpayer's property by local assessing officials, the county property tax assessment board of appeals (county board), and the Indiana board of tax review (Indiana board) in property tax appeals without first receiving the permission of the taxpayer to
(Continued next page)

Effective: Upon passage; July 1, 2026.

**Rogers, Buchanan, Holdman,
Doriot, Baldwin, Qaddoura,
Randolph Lonnie M, Pol Jr., Gaskill,
Niemeyer, Walker K**

January 5, 2026, read first time and referred to Committee on Tax and Fiscal Policy.
January 20, 2026, amended, reported favorably — Do Pass.
January 27, 2026, read second time, amended, ordered engrossed.

SB 163—LS 6760/DI 120



Digest Continued

enter the property; and (2) prohibit the issuance of orders by a county board or the Indiana board authorizing entry onto property without taxpayer permission. Establishes a county option first time home buyer's circuit breaker tax credit. Provides, for property tax appeals involving residential property, limits on additional information that may be introduced by a county assessor during the appeal. Modifies a procedure pertaining to individuals who may serve as a tax representative of any taxpayer concerning property subject to property taxes. Requires the department of local government finance to prepare certain reports regarding property tax assessment topics and the creation of a standard Internet user portal and present the reports to the interim study committee on fiscal policy. Extends the expiration of the affordable and workforce housing tax credit by five years from July 1, 2028, to July 1, 2033. Makes corresponding changes.

SB 163—LS 6760/DI 120



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January 28, 2026

Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

SENATE BILL No. 163

A BILL FOR AN ACT to amend the Indiana Code concerning
taxation.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 6-1.1-4-15, AS AMENDED BY P.L.146-2008,
2 SECTION 69, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
3 UPON PASSAGE]: Sec. 15. (a) If real property is subject to
4 assessment or reassessment under this chapter, the assessor of the
5 township in which the property is located, or the county assessor if
6 there is no township assessor for the township, shall either appraise the
7 property or have it appraised.
8 (b) In order to determine the assessed value of buildings and other
9 improvements, the township or county assessor or the assessor's
10 authorized representative may, after first making known the assessor's
11 or representative's intention to the owner or occupant, enter and fully
12 examine all buildings and structures which are located within the
13 township or county and which are subject to assessment. **However, the**
14 **township or county assessor or the assessor's authorized**
15 **representative shall not enter any buildings and structures without**
16 **first receiving the permission of the owner or occupant to enter the**
17 **building or structure. Notwithstanding any other provision to the**

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contrary, a county property tax assessment board of appeals or the Indiana board of tax review shall not issue an order (including an order issued under 52 IAC 4-8-3) authorizing entry onto a taxpayer's property without the owner's or occupant's permission.

SECTION 2. IC 6-1.1-12-14, AS AMENDED BY P.L.230-2025, SECTION 32, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 14. (a) Except as provided in subsection (c) and except as provided in section 40.5 of this chapter, an individual may have the sum of fourteen thousand dollars (\$14,000) deducted from the assessed value of the real property, mobile home not assessed as real property, or manufactured home not assessed as real property that the individual owns (or the real property, mobile home not assessed as real property, or manufactured home not assessed as real property that the individual is buying under a contract that provides that the individual is to pay property taxes on the real property, mobile home, or manufactured home if the contract or a memorandum of the contract is recorded in the county recorder's office) if:

- (1) the individual served in the military or naval forces of the United States for at least ninety (90) days;
- (2) the individual received an honorable discharge;
- (3) the individual either:
 - (A) has a total disability; or
 - (B) is at least sixty-two (62) years old and has a disability of at least ten percent (10%);
- (4) the individual's disability is evidenced by:
 - (A) a pension certificate or an award of compensation issued by the United States Department of Veterans Affairs; or
 - (B) a certificate of eligibility issued to the individual by the Indiana department of veterans' affairs after the Indiana department of veterans' affairs has determined that the individual's disability qualifies the individual to receive a deduction under this section; and
- (5) the individual:
 - (A) owns the real property, mobile home, or manufactured home; or
 - (B) is buying the real property, mobile home, or manufactured home under contract;
 on the date the statement required by section 15 of this chapter is filed.

(b) Except as provided in subsections (c) and ~~(d)~~; **(d)(1) through (d)(3)**, the surviving spouse of an individual may receive the deduction provided by this section if:



(1) the individual satisfied the requirements of subsection (a)(1) through (a)(4) at the time of death; or

(2) the individual:

(A) was killed in action;

(B) died while serving on active duty in the military or naval forces of the United States; or

(C) died while performing inactive duty training in the military or naval forces of the United States; and

the surviving spouse satisfies the requirement of subsection (a)(5) at the time the deduction statement is filed. The surviving spouse is entitled to the deduction regardless of whether the property for which the deduction is claimed was owned by the deceased veteran or the surviving spouse before the deceased veteran's death.

(c) This subsection applies to assessment dates before January 1, 2027. Except as provided in subsection (f), no one is entitled to the deduction provided by this section if the assessed value of the individual's Indiana real property, Indiana mobile home not assessed as real property, and Indiana manufactured home not assessed as real property, as shown by the tax duplicate, exceeds the assessed value limit specified in subsection ~~(d)~~: **(d)(1) through (d)(3).**

(d) Except as provided in subsection (f), for the:

(1) January 1, 2017, January 1, 2018, and January 1, 2019, assessment dates, the assessed value limit for purposes of subsection (c) is one hundred seventy-five thousand dollars (\$175,000);

(2) January 1, 2020, January 1, 2021, January 1, 2022, and January 1, 2023, assessment dates, the assessed value limit for purposes of subsection (c) is two hundred thousand dollars (\$200,000); ~~and~~

(3) January 1, 2024, **January 1, 2025, and January 1, 2026,** assessment ~~date dates, and for each assessment date thereafter,~~ the assessed value limit for purposes of subsection (c) is two hundred forty thousand dollars (\$240,000); **and**

(4) January 1, 2027, assessment date and for each assessment date thereafter, there shall be no assessed value limit to claim the deduction under this section.

(e) An individual who has sold real property, a mobile home not assessed as real property, or a manufactured home not assessed as real property to another person under a contract that provides that the contract buyer is to pay the property taxes on the real property, mobile home, or manufactured home may not claim the deduction provided under this section against that real property, mobile home, or



1 manufactured home.

2 (f) **This subsection applies to assessment dates before January**
 3 **1, 2027.** For purposes of determining the assessed value of the real
 4 property, mobile home, or manufactured home under subsection ~~(d)~~
 5 **(d)(1) through (d)(3)** for an individual who has received a deduction
 6 under this section in a previous year, increases in assessed value that
 7 occur after the later of:

8 (1) December 31, 2019; or

9 (2) the first year that the individual has received the deduction;
 10 are not considered unless the increase in assessed value is attributable
 11 to substantial renovation or new improvements. Where there is an
 12 increase in assessed value for purposes of the deduction under this
 13 section, the assessor shall provide a report to the county auditor
 14 describing the substantial renovation or new improvements, if any, that
 15 were made to the property prior to the increase in assessed value.

16 SECTION 3. IC 6-1.1-15-1.1, AS AMENDED BY P.L.9-2024,
 17 SECTION 167, IS AMENDED TO READ AS FOLLOWS
 18 [EFFECTIVE UPON PASSAGE]: Sec. 1.1. (a) A taxpayer may appeal
 19 an assessment of a taxpayer's tangible property by filing a notice in
 20 writing with the township assessor, or the county assessor if the
 21 township is not served by a township assessor. Except as provided in
 22 subsections (e) and (h), an appeal under this section may raise any
 23 claim of an error related to the following:

24 (1) The assessed value of the property.

25 (2) The assessment was against the wrong person.

26 (3) The approval, denial, or omission of a deduction, credit,
 27 exemption, abatement, or tax cap.

28 (4) A clerical, mathematical, or typographical mistake.

29 (5) The description of the real property.

30 (6) The legality or constitutionality of a property tax or
 31 assessment.

32 A written notice under this section must be made on a form designated
 33 by the department of local government finance. A taxpayer must file a
 34 separate petition for each parcel.

35 (b) A taxpayer may appeal an error in the assessed value of the
 36 property under subsection (a)(1) any time after the official's action, but
 37 not later than the following:

38 (1) For assessments before January 1, 2019, the earlier of:

39 (A) forty-five (45) days after the date on which the notice of
 40 assessment is mailed by the county; or

41 (B) forty-five (45) days after the date on which the tax
 42 statement is mailed by the county treasurer, regardless of



- 1 whether the assessing official changes the taxpayer's
 2 assessment.
- 3 (2) For assessments of real property, after December 31, 2018, the
 4 earlier of:
- 5 (A) June 15 of the assessment year, if the notice of assessment
 6 is mailed by the county before May 1 of the assessment year;
 7 or
 8 (B) June 15 of the year in which the tax statement is mailed by
 9 the county treasurer, if the notice of assessment is mailed by
 10 the county on or after May 1 of the assessment year.
- 11 (3) For assessments of personal property, forty-five (45) days after
 12 the date on which the county mails the notice under
 13 IC 6-1.1-3-20.
- 14 A taxpayer may appeal an error in the assessment under subsection
 15 (a)(2), (a)(3), (a)(4), (a)(5), or (a)(6) not later than three (3) years after
 16 the taxes were first due.
- 17 (c) Except as provided in subsection (d), an appeal under this
 18 section applies only to the tax year corresponding to the tax statement
 19 or other notice of action.
- 20 (d) An appeal under this section applies to a prior tax year if a
 21 county official took action regarding a prior tax year, and such action
 22 is reflected for the first time in the tax statement. A taxpayer who has
 23 timely filed a written notice of appeal under this section may be
 24 required to file a petition for each tax year, and each petition filed later
 25 must be considered timely.
- 26 (e) A taxpayer may not appeal under this section any claim of error
 27 related to the following:
- 28 (1) The denial of a deduction, exemption, abatement, or credit if
 29 the authority to approve or deny is not vested in the county board,
 30 county auditor, county assessor, or township assessor.
- 31 (2) The calculation of interest and penalties.
- 32 (3) A matter under subsection (a) if a separate appeal or review
 33 process is statutorily prescribed.
- 34 However, a claim may be raised under this section regarding the
 35 omission or application of a deduction approved by an authority other
 36 than the county board, county auditor, county assessor, or township
 37 assessor.
- 38 (f) The filing of a written notice under this section constitutes a
 39 request by the taxpayer for a preliminary informal meeting with the
 40 township assessor, or the county assessor if the township is not served
 41 by a township assessor.
- 42 (g) A county or township official who receives a written notice



under this section shall forward the notice to:

(1) the county board; and

(2) the county auditor, if the taxpayer raises a claim regarding a matter that is in the discretion of the county auditor.

(h) A taxpayer may not raise any claim in an appeal under this section related to the legality or constitutionality of:

(1) a user fee (as defined in IC 33-23-1-10.5);

(2) any other charge, fee, or rate imposed by a political subdivision under any other law; or

(3) any tax imposed by a political subdivision other than a property tax.

(i) This subsection applies only to an appeal based on a claim of error in the determination of property that is or is not eligible for a standard homestead deduction under IC 6-1.1-12-37 and only for an assessment date occurring before January 1, 2024. A taxpayer may appeal an error in the assessment of property as described in this subsection any time after the official's action, but not later than one (1) year after the date on which the property that is the subject of the appeal was assessed.

(j) In an appeal following the date of assessment under IC 6-1.1-2-1.5 for residential property:

(1) no additional information may be introduced by a county assessor in determining the appeal beyond the information:

(A) used by the county assessor or third party contractor on the assessment date to determine the assessment for the given assessment year;

(B) that is included in the property tax statement for the given assessment year or the notice of assessment for the given assessment year; and

(C) that is furnished to the taxpayer for the given assessment year; and

(2) a county assessor shall not introduce or rely on any information not used to determine the assessment on the assessment date for the given assessment year, including any information from a third party contractor.

For purposes of this subsection, an appeal includes a preliminary informal meeting under section 1.2(a) of this chapter.

SECTION 4. IC 6-1.1-15-1.2, AS AMENDED BY P.L.9-2024, SECTION 168, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE UPON PASSAGE]: Sec. 1.2. (a) A county or township official who receives a written notice under section 1.1 of this chapter shall schedule, at a time during business hours that is convenient to the



taxpayer, a preliminary informal meeting with the taxpayer in order to resolve the appeal. If the taxpayer raises a claim regarding a matter that is in the discretion of the county auditor, the informal meeting must include the county auditor. At the preliminary informal meeting, in order to facilitate understanding and the resolution of disputed issues:

- (1) a county or township official;
- (2) the county auditor, if the matter is in the discretion of the county auditor; and
- (3) the taxpayer;

shall exchange the information that each party is relying on at the time of the preliminary informal meeting to support the party's respective position on each disputed issue concerning the assessment or deduction. If additional information is obtained by the county or township official, the county auditor, or the taxpayer after the preliminary informal meeting and before the hearing held by the county board, the party obtaining the information shall provide the information to the other party. If the county or township official, the county auditor, or the taxpayer obtains additional information and provides the information to the other party for the first time at the hearing held by the county board, the county board, unless waived by the receiving party, shall continue the hearing until a future hearing date of the county board so that the receiving party has an opportunity to review all the information that the offering party is relying on to support the offering party's positions on the disputed issues concerning the assessment or deduction.

(b) The official shall report on a form prescribed by the department of local government finance the results of the informal meeting. If the taxpayer and the official agree on the resolution of all issues in the appeal, the report shall state the agreed resolution of the matter and be signed by the official and the taxpayer. If an informal meeting is not held, or the informal meeting is unsuccessful, the official shall report those facts on the form. The official shall forward the report on the informal meeting to the county board.

(c) If the county board receives a report on the informal meeting indicating an agreed resolution of the matter, the county board shall vote to accept or deny the agreed resolution. If the county board accepts the agreed resolution, the county board shall issue a notification of final assessment determination adopting the agreed resolution and vacating the hearing if scheduled.

(d) The county board, upon receipt of a written notice under section 1.1 of this chapter, shall hold a hearing on the appeal not later than one hundred eighty (180) days after the filing date of the written notice.



1 The county board shall, by mail, give at least thirty (30) days notice of
 2 the date, time, and place fixed for the hearing to the taxpayer, the
 3 county or township official with whom the taxpayer filed the written
 4 notice, and the county auditor. If the county board has notice that the
 5 taxpayer is represented by a third person, any hearing notice shall be
 6 mailed to the representative.

7 (e) If good cause is shown, the county board shall grant a request for
 8 continuance filed in writing at least ten (10) days before the hearing,
 9 and reschedule the hearing under subsection (d).

10 (f) A taxpayer may withdraw an appeal by filing a written request
 11 at least ten (10) days before the hearing. The county board shall issue
 12 a notification of final assessment determination indicating the
 13 withdrawal and no change in the assessment. A withdrawal waives a
 14 taxpayer's right to appeal to the Indiana board.

15 (g) The county board shall determine an appeal without a hearing if
 16 requested by the taxpayer in writing at least twenty (20) days before the
 17 hearing.

18 (h) If a taxpayer appeals the assessment of tangible property under
 19 section 1.1 of this chapter, the taxpayer is not required to have an
 20 appraisal of the property in order to initiate the appeal or prosecute the
 21 appeal. If the taxpayer presents an appraisal to the county board that:

22 (1) is prepared by a certified appraiser in compliance with the
 23 Uniform Standards of Professional Appraisal Practice to
 24 determine the market value in use;

25 (2) is addressed to the property owner or the assessor's office;

26 (3) is commissioned for the purpose of the assessment appeal; and

27 (4) has an effective date that is the same date as the date of the
 28 assessment that is the subject of the appeal;

29 the value of the property contained in the appraisal is presumed to be
 30 correct. If the county board disagrees with the taxpayer's appraisal, the
 31 county board may seek review of the appraisal by a third party
 32 independent certified appraiser or obtain an independent appraisal
 33 report conducted by a certified appraiser in compliance with the
 34 Uniform Standards of Professional Appraisal Practice. If the county
 35 board's appraisal differs from the taxpayer's appraisal, the county board
 36 shall weigh the evidence and determine the true tax value of the
 37 property based on the totality of the probative evidence before the
 38 county board. The county board's determination of the property's true
 39 tax value may be higher or lower than the assessment but may not be
 40 lower than the lowest appraisal presented to or obtained by the county
 41 board, or higher than the highest appraisal presented to or obtained by
 42 the county board. After the assignment of value, the parties shall retain



1 their rights to appeal the assessment or assessments to the Indiana
2 board, which must hear the appeal de novo.

3 (i) At a hearing under subsection (d), the taxpayer shall have the
4 opportunity to present testimony and evidence regarding the matters on
5 appeal. If the matters on appeal are in the discretion of the county
6 auditor, the county auditor or the county auditor's representative shall
7 attend the hearing. A county or township official, or the county auditor
8 or the county auditor's representative, shall have an opportunity to
9 present testimony and evidence regarding the matters on appeal. The
10 county board may adjourn and continue the hearing to a later date in
11 order to make a physical inspection or consider the evidence presented.
12 **However, the county board or assessing official shall not enter a**
13 **property to conduct a physical inspection without first receiving**
14 **the permission of the taxpayer to enter the property to make the**
15 **physical inspection. Notwithstanding any other provision to the**
16 **contrary, the county board shall not issue an order (including an**
17 **order issued under 52 IAC 4-8-3) authorizing entry onto a**
18 **taxpayer's property without the taxpayer's permission.**

19 (j) The county board shall determine the assessment by motion and
20 majority vote. Except as provided in subsection (m), a county board
21 may, based on the evidence before it, increase an assessment. The
22 county board shall issue a written decision. Written notice of the
23 decision shall be given to the township official, county official, county
24 auditor, and the taxpayer.

25 (k) If more than one hundred eighty (180) days have passed since
26 the date the notice of appeal was filed, and the county board has not
27 issued a determination, a taxpayer may initiate any appeal with the
28 Indiana board of tax review under section 3 of this chapter.

29 (l) The county assessor may assess a penalty of fifty dollars (\$50)
30 against the taxpayer if the taxpayer or representative fails to appear at
31 a hearing under subsection (d) and, under subsection (e), the taxpayer's
32 request for continuance is denied, or the taxpayer's request for
33 continuance, request for the board to take action without a hearing, or
34 withdrawal is not timely filed. A taxpayer may appeal the assessment
35 of the penalty to the Indiana board or directly to the tax court. The
36 penalty may not be added as an amount owed on the property tax
37 statement under IC 6-1.1-22 or IC 6-1.1-22.5.

38 (m) The determination of an appealed assessed value of tangible
39 property by a county or township official resulting from an informal
40 meeting under subsection (a), or by a county board resulting from an
41 appeal hearing under subsection (d), may be less than or equal to the
42 tangible property's original appealed assessed value at issue, but may



not exceed the original appealed assessed value at issue. However, an increase in assessed value that is attributable to substantial renovation, new improvements, zoning change, or use change is excluded from the limitation under this subsection.

SECTION 5. IC 6-1.1-15-4, AS AMENDED BY P.L.230-2025, SECTION 40, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE UPON PASSAGE]: Sec. 4. (a) After receiving a petition for review which is filed under section 3 of this chapter, the Indiana board shall conduct a hearing at its earliest opportunity. The Indiana board may correct any errors related to a claim under section 1.1 of this chapter that is within the jurisdiction of the Indiana board under IC 6-1.5-4-1.

(b) If the Indiana board conducts a site inspection of the property as part of its review of the petition, the Indiana board shall give notice to all parties of the date and time of the site inspection. **However, the Indiana board shall not enter a property to conduct a site inspection of the property without first receiving the permission of the taxpayer to enter the property to make the site inspection. Notwithstanding any other provision to the contrary, the Indiana board shall not issue an order (including an order issued under 52 IAC 4-8-3) authorizing entry onto a taxpayer's property without the taxpayer's permission.** The Indiana board is not required to assess the property in question. The Indiana board shall give notice of the date fixed for the hearing, by mail, to the parties or a party's representative. The Indiana board shall give these notices at least thirty (30) days before the day fixed for the hearing unless the parties agree to a shorter period. With respect to a petition for review filed by a county assessor, the county board that made the determination under review under this section may file an amicus curiae brief in the review proceeding under this section. The expenses incurred by the county board in filing the amicus curiae brief shall be paid from the property reassessment fund under IC 6-1.1-4-27.5 of the county in which the property is located. The executive of a taxing unit may file an amicus curiae brief in the review proceeding under this section if the property that is the subject of the appeal is subject to assessment by that taxing unit.

(c) If a petition for review does not comply with the Indiana board's instructions for completing the form prescribed under section 3 of this chapter, the Indiana board shall serve a notice describing the defect in the petition. The petitioner then has thirty (30) days from the date on the notice to cure the defect and file a corrected petition. The Indiana board shall deny a corrected petition for review if it does not substantially comply with the Indiana board's instructions for completing the form prescribed under section 3 of this chapter.



(d) After the hearing, the Indiana board shall give the parties and any entity that filed an amicus curiae brief, or their representatives:

- (1) notice of its final determination; and
- (2) for parties entitled to appeal the final determination, notice of the procedures they must follow in order to obtain court review under section 5 of this chapter.

(e) The Indiana board shall conduct a hearing not later than one (1) year after a petition in proper form is filed with the Indiana board.

(f) The Indiana board shall issue a determination not later than the later of:

- (1) ninety (90) days after the hearing; or
 - (2) the date set in an extension order issued by the Indiana board.
- The board may not extend the date by more than one hundred eighty (180) days.

(g) The time periods described in subsections (e) and (f) do not include any period of time that is attributable to a party's:

- (1) request for a continuance, stay, extension, or summary disposition;
- (2) consent to a case management order, stipulated record, or proposed hearing date;
- (3) failure to comply with the board's orders or rules; or
- (4) waiver of a deadline.

(h) If the Indiana board fails to take action required under subsection (e) or (f), the entity that initiated the petition may:

- (1) take no action and wait for the Indiana board to hear the matter and issue a final determination; or
- (2) petition for judicial review under section 5 of this chapter.

(i) This subsection applies when the board has not held a hearing. A person may not seek judicial review under subsection (h)(2) until:

- (1) the person requests a hearing in writing; and
- (2) sixty (60) days have passed after the person requests a hearing under subdivision (1) and the matter has not been heard or otherwise extended under subsection (g).

(j) A final determination must include separately stated findings of fact for all aspects of the determination. Findings of ultimate fact must be accompanied by a concise statement of the underlying basic facts of record to support the findings. Findings must be based exclusively upon the evidence on the record in the proceeding and on matters officially noticed in the proceeding. Findings must be based upon a preponderance of the evidence.

(k) The Indiana board may limit the scope of the appeal to the issues raised in the petition and the evaluation of the evidence presented to



the county board in support of those issues only if all parties participating in the hearing required under subsection (a) agree to the limitation. A party participating in the hearing required under subsection (a) is entitled to introduce evidence that is otherwise proper and admissible without regard to whether that evidence has previously been introduced at a hearing before the county board.

(l) The Indiana board may require the parties to the appeal:

(1) to file not more than five (5) business days before the date of the hearing required under subsection (a) documentary evidence or summaries of statements of testimonial evidence; and

(2) to file not more than fifteen (15) business days before the date of the hearing required under subsection (a) lists of witnesses and exhibits to be introduced at the hearing.

(m) A party to a proceeding before the Indiana board shall provide to all other parties to the proceeding the information described in subsection (l) if the other party requests the information in writing at least ten (10) days before the deadline for filing of the information under subsection (l).

(n) The Indiana board may base its final determination on a stipulation between the respondent and the petitioner. If the final determination is based on a stipulated assessed valuation of tangible property, the Indiana board may order the placement of a notation on the permanent assessment record of the tangible property that the assessed valuation was determined by stipulation. The Indiana board may:

(1) order that a final determination under this subsection has no precedential value; or

(2) specify a limited precedential value of a final determination under this subsection.

(o) If a party to a proceeding, or a party's authorized representative, elects to receive any notice under this section electronically, the notice is considered effective in the same manner as if the notice had been sent by United States mail, with postage prepaid, to the party's or representative's mailing address of record.

(p) At a hearing under this section, the Indiana board shall admit into evidence an appraisal report, prepared by an appraiser, unless the appraisal report is ruled inadmissible on grounds besides a hearsay objection. This exception to the hearsay rule shall not be construed to limit the discretion of the Indiana board, as trier of fact, to review the probative value of an appraisal report.

SECTION 6. IC 6-1.1-15-6, AS AMENDED BY P.L.121-2019, SECTION 8, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE



UPON PASSAGE]: Sec. 6. (a) Except with respect to a petition filed under section 5(g) of this chapter, if a petition for judicial review is initiated by a person under section 5 of this chapter, the Indiana board shall prepare a certified record of the proceedings related to the petition. The Indiana board shall file a notice of completion with the clerk of the tax court within forty-five (45) days after the filing of the petition indicating that the certified record of the proceedings is complete. If the Indiana board is unable to timely complete the Indiana board's preparation of the certified record of proceedings, the Indiana board shall file a statement with the clerk of the tax court providing the reasons for the delay and the date the Indiana board will complete the preparation. If the reasons for the delay are due to circumstances within the Indiana board's control, the tax court may issue a revised due date for the Indiana board to file the notice of completion. If the reasons for the delay are due to circumstances within the control of the petitioner, the case may be subject to dismissal.

(b) The record for judicial review required under subsection (a) must include the following documents and items:

(1) Copies of all papers submitted to the Indiana board during the course of the action and copies of all papers provided to the parties by the Indiana board. For purposes of this subdivision, the term "papers" includes, without limitation, all notices, petitions, motions, pleadings, orders, orders on rehearing, briefs, requests, intermediate rulings, photographs, and other written documents.

(2) Evidence received or considered by the Indiana board.

~~(3) A statement of whether a site inspection was conducted, and, if a site inspection was conducted, either:~~

~~(A) a summary report of the site inspection; or~~

~~(B) a videotape transcript of the site inspection.~~

~~(4)~~ (3) A statement of matters officially noticed.

~~(5)~~ (4) Proffers of proof and objections and rulings on them.

~~(6)~~ (5) Copies of proposed findings, requested orders, and exceptions.

~~(7)~~ (6) Either:

(A) a transcription of the audio tape of the hearing; or

(B) a transcript of the hearing prepared by a court reporter.

Copies of exhibits that, because of their nature, cannot be incorporated into the certified record must be kept by the Indiana board until the appeal is finally terminated. However, this evidence must be briefly named and identified in the transcript of the evidence and proceedings.

(c) Except with respect to a petition filed under section 5(g) of this chapter, if the tax court judge finds that:



(1) a report of all or a part of the evidence or proceedings at a hearing conducted by the Indiana board was not made; or

(2) a transcript is unavailable;

a party to the appeal initiated under section 5 of this chapter may, at the discretion of the tax court judge, prepare a statement of the evidence or proceedings. The statement must be submitted to the tax court and also must be served on all other parties. A party to the proceeding may serve objections or prepare amendments to the statement not later than ten (10) days after service.

SECTION 7. IC 6-1.1-15-17.3, AS AMENDED BY P.L.178-2021, SECTION 3, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE UPON PASSAGE]: Sec. 17.3. (a) As used in this section, "tax official" means:

(1) a township assessor;

(2) a county assessor;

(3) a county auditor;

(4) a county treasurer;

(5) a member of a county board; or

(6) any employee, contract employee, or independent contractor of an individual described in subdivisions (1) through (5).

(b) Except as provided in subsection (c), a tax official in a county may not serve as a tax representative of any taxpayer with respect to property subject to property taxes in the county before the county board of that county or the Indiana board. The prohibition under this subsection applies regardless of whether or not the individual receives any compensation for the representation or assistance.

(c) Subsection (b) does not:

(1) prohibit a contract employee or independent contractor of a tax official from serving as a tax representative before the county board or Indiana board for a taxpayer with respect to property subject to property taxes in the county unless the contract employee or independent contractor personally and substantially participated in the assessment of the property; or

(2) prohibit an individual from appearing before the county board or Indiana board regarding property owned by the individual.

(d) An individual who is a former county assessor, former township assessor, former employee or contract employee of a county assessor or township assessor, or an independent contractor formerly employed by a county assessor or township assessor may not serve as a tax representative for or otherwise assist another person in an assessment appeal before a county board or the Indiana board if:

(1) the appeal involves the assessment of property located in:



- 1 (A) the county in which the individual was the county assessor
- 2 or was an employee, contract employee, or independent
- 3 contractor of the county assessor; or
- 4 (B) the township in which the individual was the township
- 5 assessor or was an employee, contract employee, or
- 6 independent contractor of the township assessor; and
- 7 (2) while the individual was the county assessor or township
- 8 assessor, was employed by or a contract employee of the county
- 9 assessor or the township assessor, or was an independent
- 10 contractor for the county assessor or the township assessor, the
- 11 individual personally and substantially participated in the
- 12 assessment of the property.
- 13 The prohibition under this subsection applies regardless of whether the
- 14 individual receives any compensation for the representation or
- 15 assistance. However, this subsection does not prohibit an individual
- 16 from appearing before the Indiana board or county board regarding
- 17 property owned by the individual.
- 18 (e) The department shall prepare and make available to taxpayers a
- 19 power of attorney form that allows the owner of property that is the
- 20 subject of an appeal under this article to appoint a relative (as defined
- 21 in IC 2-2.2-1-17) for specific assessment years to represent the owner
- 22 concerning the appeal before the county board or the department of
- 23 local government finance. A relative who is appointed by the owner of
- 24 the property under this subsection:
- 25 (1) may represent the owner before the county board or the
- 26 department of local government finance but not the Indiana board
- 27 concerning the appeal; and
- 28 (2) is not required to be certified as a tax representative in order
- 29 to represent the owner concerning the appeal.
- 30 (f) Notwithstanding any other law, but subject to subsections (b) and
- 31 (d) and IC 6-1.1-31.7-3.5, an individual may serve as a tax
- 32 representative of any taxpayer concerning property subject to property
- 33 taxes in the county:
- 34 (1) before the county board of that county, if:
- 35 (A) the individual is certified as a level two assessor-appraiser
- 36 under IC 6-1.1-35.5; and
- 37 (B) the taxpayer ~~authorizes~~ **has provided written**
- 38 **authorization, which may be by electronic means and may**
- 39 **not be effective for more than one (1) year, to the individual**
- 40 **to serve as the taxpayer's tax representative on a form that: ~~is:~~**
- 41 **(i) is prepared by the department of local government**
- 42 **finance; and**



(ii) contains an attestation that the taxpayer has provided written authorization for the individual designated to serve as the taxpayer's tax representative; and

~~(ii)~~ (iii) is submitted with the taxpayer's notice to initiate an appeal; or

(2) before the county board of that county or the Indiana board, if:

(A) the individual is certified as a level three assessor-appraiser under IC 6-1.1-35.5; and

(B) the taxpayer has provided written authorization, which may be by electronic means and may not be effective for more than one (1) year, to the individual to serve as the taxpayer's tax representative on a form that:

(i) is prepared by the department of local government finance;

(ii) contains an attestation that the taxpayer has provided written authorization for the individual designated to serve as the taxpayer's tax representative; and

(iii) is submitted with the taxpayer's notice to initiate an appeal.

The taxpayer must also have a signed agreement with the individual designated to serve as the taxpayer's tax representative which must be attested to by the taxpayer as required under subdivisions (1) and (2).

SECTION 8. IC 6-1.1-49-4, AS ADDED BY P.L.95-2023, SECTION 1, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 4. (a) Subject to subsection ~~(h)~~, (g), a county fiscal body may adopt an ordinance to provide a credit against a qualified individual's property tax liability as set forth in this chapter.

(b) An ordinance adopted under this section may designate a neighborhood enhancement district. A neighborhood enhancement district may include:

(1) all of the territory of the county; or

(2) one (1) or more specific geographic territories within the county;

as an area in which qualified individuals may apply for the credit.

(c) Subject to subsection ~~(h)~~, (g), an ordinance adopted under this section must:

(1) include a boundary description of the neighborhood enhancement district or districts to which the ordinance applies;

(2) specify the income thresholds for a qualified individual under



section 3(5)(A) and 3(5)(B) of this chapter, if any; and
 (3) specify the percentage of increase on a qualified individual's
 property tax liability in a particular year compared to the prior
 year that is to be used in determining the amount of the county
 option circuit breaker tax credit calculated under section 7(2)(B)
 of this chapter. The percentage must be at least two percent (2%)
 but not more than five percent (5%).

The boundary description required under subdivision (1) must be
 sufficient to identify the parcel or parcels to which the credit may be
 applied, including identification by taxing district, a parcel list, or a
 legal description.

(d) If a proposal is presented to the county fiscal body to adopt an
 ordinance under this section, the county fiscal body shall hear the
 proposal at a public meeting of the county fiscal body and may then
 vote to adopt the ordinance at the next meeting of the county fiscal
 body.

(e) The county fiscal body may rescind an ordinance adopted under
 this section.

(f) An ordinance adopted under this section is effective January 1 of
 the year following the year in which the ordinance is adopted.

~~(g) An ordinance adopted under this section must specify that the
 credit does not apply for property taxes first due and payable after
 December 31, 2027.~~

~~(h)~~ (g) A county fiscal body shall prescribe the same income
 thresholds, credit amounts, and any other requirements related to
 eligibility for each neighborhood enhancement district designated in
 the county.

SECTION 9. IC 6-1.1-49-11 IS REPEALED [EFFECTIVE JULY
 1, 2026]. ~~Sec. 11. This chapter expires January 1, 2028.~~

SECTION 10. IC 6-1.1-53 IS ADDED TO THE INDIANA CODE
 AS A NEW CHAPTER TO READ AS FOLLOWS [EFFECTIVE
 UPON PASSAGE]:

**Chapter 53. County Option First Time Home Buyer's Circuit
 Breaker Tax Credit**

Sec. 1. As used in this chapter, "first time home buyer" means
 an individual who is buying a home in Indiana for the first time
 and who has not had an ownership interest in a home at any time
 preceding the date on which the individual purchases a home. The
 term includes a married couple if one (1) spouse satisfies the
 definition set forth in this section.

Sec. 2. As used in this chapter, "home" means an individual's
 principal place of residence in Indiana that is:



(1) in the first year, eligible for the standard homestead deduction under IC 6-1.1-12-37; and

(2) in the second and following years, granted the standard homestead deduction under IC 6-1.1-12-37.

The term does not include a newly constructed home that is less than one hundred percent (100%) completed.

Sec. 3. As used in this chapter, "qualified individual" means an individual who:

(1) is a first time home buyer;

(2) is:

(A) in the first year, eligible for the standard homestead deduction under IC 6-1.1-12-37; and

(B) in the second and following years, granted the standard homestead deduction under IC 6-1.1-12-37;

(3) had:

(A) in the case of an individual who filed a single return, an adjusted gross income (as defined in Section 62 of the Internal Revenue Code) not exceeding the amount specified in the ordinance adopted by the county under section 4(b)(2) of this chapter; or

(B) in the case of an individual who filed a joint income tax return with the individual's spouse, combined adjusted gross income (as defined in Section 62 of the Internal Revenue Code) not exceeding the amount specified in the ordinance adopted by the county under section 4(b)(2) of this chapter;

for the calendar year preceding by two (2) years the calendar year in which property taxes are first due and payable;

(4) had an assessed value for the individual's Indiana real property that is an amount not more than the amount specified in the ordinance adopted by the county fiscal body under section 4(b)(3) of this chapter in the first year the credit will be applied; and

(5) resides within the boundaries specified in the ordinance adopted by the county fiscal body under section 4(b)(1) of this chapter.

Sec. 4. (a) Subject to subsection (f), a county fiscal body may adopt an ordinance to provide a credit against a qualified individual's property tax liability as set forth in this chapter.

(b) Subject to subsection (f), an ordinance adopted under this section must:

(1) include a boundary description to which the ordinance



1 applies;

2 (2) specify the income thresholds for a qualified individual
3 under section 3(3)(A) and 3(3)(B) of this chapter, if any;

4 (3) specify the maximum assessed value for an individual's
5 qualifying Indiana real property, if any; and

6 (4) specify the number of years the credit is to be applied,
7 which must be at least one (1) calendar year but not more
8 than five (5) consecutively succeeding calendar years,
9 beginning with the calendar year that the qualified
10 individual's home is first assessed as a first time home buyer.

11 The boundary description required under subdivision (1) must be
12 sufficient to identify the parcel or parcels to which the credit may
13 be applied, including identification by taxing district, a parcel list,
14 or a legal description.

15 (c) If a proposal is presented to the county fiscal body to adopt
16 an ordinance under this section, the county fiscal body shall hear
17 the proposal at a public meeting of the county fiscal body and may
18 then vote to adopt the ordinance at the next meeting of the county
19 fiscal body.

20 (d) The county fiscal body may rescind an ordinance adopted
21 under this section. However, the rescission of an ordinance shall
22 not affect those qualified individuals who are eligible and granted
23 the credit for the qualified individual's property tax liability under
24 the ordinance before the date of the rescission and would continue
25 to be eligible to apply the credit under the term of years specified
26 in the ordinance in one (1) or more succeeding years, if not for the
27 rescission. The county fiscal body must state in the ordinance that
28 the credit allowed under the ordinance shall continue in effect for
29 those qualified individuals, notwithstanding the rescission.

30 (e) An ordinance adopted under this section is effective January
31 1 of the year following the year in which the ordinance is adopted.

32 (f) A county fiscal body shall prescribe the same income and
33 assessed value thresholds and any other requirements and
34 limitations related to eligibility for each boundary designated in
35 the county.

36 Sec. 5. If a county fiscal body adopts an ordinance to either
37 provide the credit under this chapter or rescind an ordinance
38 previously adopted, the county fiscal body shall, not later than
39 fifteen (15) days after the adoption of the ordinance, give notice of
40 the adoption of the ordinance to:

41 (1) the department on the form and in the manner prescribed
42 by the department;



1 (2) the county auditor;
 2 (3) the fiscal officer of each taxing unit within each boundary
 3 to which the ordinance applies; and
 4 (4) in the case of a county that has rescinded an ordinance
 5 under section 4(d) of this chapter, each qualified individual
 6 who has already been granted and will continue to be eligible
 7 to apply the credit to the qualified individual's property tax
 8 liability under the ordinance, notwithstanding the rescission,
 9 advising them that they will continue to be eligible to do so;
 10 including a certified copy of the adopted ordinance.

11 Sec. 6. (a) A qualified individual who has a credit provided
 12 under this chapter applied to the qualified individual's property
 13 tax liability in a particular calendar year may not also have a
 14 credit under IC 6-1.1-20.6-8.5 applied to the qualified individual's
 15 property tax liability in the same calendar year.

16 (b) Not more than one (1) credit may be claimed under this
 17 chapter with respect to a particular homestead by any qualified
 18 individual.

19 Sec. 7. (a) The amount of the credit under this chapter is equal
 20 to the greater of zero (0) or the result of:

21 (1) the property tax liability first due and payable on the
 22 qualified individual's homestead property for the calendar
 23 year (excluding any property tax liability imposed in a voter
 24 approved referendum levy); minus

25 (2) the result of:

26 (A) the property tax liability first due and payable on the
 27 qualified individual's homestead property for the
 28 immediately preceding year after the application of the
 29 credit granted under this section for that year (excluding
 30 any property tax liability imposed in a voter approved
 31 referendum levy); multiplied by

32 (B) the sum of:

33 (i) the applicable percentage under subsection (b),
 34 expressed as a decimal; plus

35 (ii) one (1).

36 However, the credit provided by this chapter shall not apply to any
 37 portion of property tax liability imposed on a qualified individual's
 38 homestead property that is used for trade or business purposes in
 39 connection with the production of income, and the qualified
 40 individual must attest to this on the application for the credit. In
 41 addition, the credit does not affect the allocation of taxes to a
 42 referendum fund.



(b) The following percentage applies under subsection (a)(2)(B)(i) depending on the number of years the credit is to be applied under section 4(b)(4) of this chapter:

(1) For the first calendar year that a credit is applied to the qualified individual's homestead property under this chapter, the applicable percentage under subsection (a)(2)(B)(i) is two percent (2%) for that calendar year.

(2) If a credit is applied to the qualified individual's homestead property under this chapter for a second calendar year, the applicable percentage under subsection (a)(2)(B)(i) is two percent (2%) for that calendar year.

(3) If a credit is applied to the qualified individual's homestead property under this chapter for a third calendar year, the applicable percentage under subsection (a)(2)(B)(i) is three percent (3%) for that calendar year.

(4) If a credit is applied to the qualified individual's homestead property under this chapter for a fourth calendar year, the applicable percentage under subsection (a)(2)(B)(i) is four percent (4%) for that calendar year.

(5) If a credit is applied to the qualified individual's homestead property under this chapter for a fifth calendar year, the applicable percentage under subsection (a)(2)(B)(i) is five percent (5%) for that calendar year.

Sec. 8. If the ownership of a homestead for which a qualified individual received a credit under this chapter changes, and the qualified individual no longer owns or principally resides in the homestead, the county auditor shall remove the designation of the individual as a qualified individual with respect to that homestead.

Sec. 9. The auditor of each county shall, in a particular year, apply a credit provided under this chapter to each qualified individual who received the credit in the preceding year, unless the county auditor determines that the individual is no longer eligible for the credit.

Sec. 10. (a) If a qualified individual who is receiving the credit provided by this chapter:

(1) knows or should have known that the individual does not qualify for the credit under this chapter; or

(2) changes the use of the individual's property so that part or all of the property no longer qualifies for the credit under this chapter;

the individual must file a certified statement with the county auditor notifying the county auditor that subdivision (1) or (2)



1 applies not more than sixty (60) days after the date subdivision (1)
2 or (2) first applies.

3 (b) An individual who fails to file the statement required by this
4 section is liable for any additional taxes that would have been due
5 on the property if the individual had filed the statement as
6 required by this section, plus a civil penalty equal to ten percent
7 (10%) of the additional taxes due. The additional taxes owed plus
8 the civil penalty become part of the property tax liability for
9 purposes of this article.

10 (c) The civil penalty imposed under this section is in addition to
11 any interest and penalties for a delinquent payment that might
12 otherwise be due. One percent (1%) of the total civil penalty
13 collected under this section shall be transferred by the county to
14 the department for use by the department in establishing and
15 maintaining the homestead property data base under
16 IC 6-1.1-12-37(j) and, to the extent there is money remaining, for
17 any other purposes of the department.

18 SECTION 11. IC 6-3.1-35-7, AS AMENDED BY P.L.194-2023,
19 SECTION 24, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
20 JULY 1, 2026]: Sec. 7. (a) An eligible applicant who wishes to obtain
21 the state tax credit provided by this chapter for a qualified project must
22 submit an application to the authority after June 30, 2023, and before
23 January 1, 2028; **2033**, in the manner prescribed by the authority.

24 (b) An application submitted under subsection (a) must include:

- 25 (1) the name and address of the qualified project;
- 26 (2) the name and address of the owner of the qualified project;
- 27 and
- 28 (3) any other information required by the authority.

29 (c) Subject to section 8 of this chapter, the authority may approve a
30 tax credit application if:

- 31 (1) the applicant is an eligible applicant;
- 32 (2) the project identified in the application is a qualified project;
- 33 and
- 34 (3) the tax credit application meets any other requirements for
35 receipt of state tax credits established by the authority.

36 (d) If the authority approves a tax credit application for a qualified
37 project, for each taxable year in the tax credit period the authority may
38 approve a maximum amount of state tax credits. The maximum
39 aggregate amount of state tax credits awarded by the authority for the
40 state tax credit period of a qualified project is an amount that is the
41 product of:

- 42 (1) a percentage determined by the authority, which must be less



than or equal to one hundred percent (100%); multiplied by
 (2) the anticipated aggregate federal tax credits over the credit
 period as defined by Section 42(f) of the Internal Revenue Code
 and specified in a letter issued by the authority for the qualified
 project under Section 42(m) of the Internal Revenue Code (annual
 amount multiplied by ten (10) years).

(e) If the authority approves a tax credit application for a qualified
 project, the authority shall issue an eligibility statement to the eligible
 applicant. The eligibility statement must specify at least the following:

- (1) A unique identification code for the eligibility statement,
 determined by the authority.
- (2) The name of the qualified project.
- (3) For each taxable year in the state tax credit period of the
 qualified project, the maximum amount of state tax credit that the
 authority is awarding to the eligible applicant for the qualified
 project.

(f) The authority shall transmit a copy of each eligibility statement
 issued under subsection (e) to the department.

SECTION 12. IC 6-3.1-35-8, AS ADDED BY P.L.137-2022,
 SECTION 52, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 JULY 1, 2026]: Sec. 8. (a) For each state fiscal year beginning after
 June 30, 2023, and before July 1, 2028, **2033**, the aggregate amount of
 state tax credits awarded by the authority under this chapter may not
 exceed thirty million dollars (\$30,000,000). For purposes of calculating
 the aggregate state tax credit limit for a state fiscal year, the amounts
 awarded by the authority are considered to be awarded in the year the
 award is made to the state tax credit recipient by the authority,
 notwithstanding the fact that the awarded state tax credit is to be
 claimed over the state tax credit period.

(b) To the extent that the tax credit applications requesting state tax
 credits exceed the amount of available state tax credits in a year, or the
 authority reasonably anticipates that the requests will exceed the state
 fiscal year limitation established in subsection (a), the authority may
 allocate the state tax credits in a manner that furthers the mission and
 purpose of the authority and otherwise promotes the establishment of
 qualified projects.

SECTION 13. IC 6-3.1-35-11, AS ADDED BY P.L.137-2022,
 SECTION 52, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
 JULY 1, 2026]: Sec. 11. This chapter is subject to review under
 IC 2-5-3.2-1 to evaluate the effectiveness of the state tax credit. ~~one (1)~~
~~year prior to its expiration under section 12 of this chapter.~~

SECTION 14. IC 6-3.1-35-12, AS ADDED BY P.L.137-2022,



1 SECTION 52, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
2 JULY 1, 2026]: Sec. 12. This chapter expires July 1, ~~2028~~: **2033**.

3 SECTION 15. IC 36-2-15-12 IS ADDED TO THE INDIANA
4 CODE AS A NEW SECTION TO READ AS FOLLOWS
5 [EFFECTIVE UPON PASSAGE]: **Sec. 12. A county assessor shall**
6 **not enter a property to conduct a physical inspection of a property**
7 **without first receiving the permission of the property owner to**
8 **enter the property to make the physical inspection.**
9 **Notwithstanding any other provision to the contrary, a county**
10 **property tax assessment board of appeals or the Indiana board of**
11 **tax review shall not issue an order (including an order issued under**
12 **52 IAC 4-8-3) authorizing entry onto a taxpayer's property without**
13 **the property owner's permission.**

14 SECTION 16. [EFFECTIVE UPON PASSAGE] (a) As used in this
15 SECTION, "automated valuation system" means a centralized
16 system of automated valuation models and algorithms that may be
17 applied to homestead and residential property valuation.

18 (b) As used in this SECTION, "homestead" refers to a
19 homestead that qualifies for a standard deduction under
20 IC 6-1.1-12-37.

21 (c) As used in this SECTION, "residential property" has the
22 meaning set forth in IC 6-1.1-20.6-4.

23 (d) The department of local government finance shall prepare
24 a report regarding the creation of an automated valuation system
25 for local assessors to use in the state for the assessment of
26 homestead and residential property values.

27 (e) The department of local government finance shall present
28 the report prepared under subsection (d) to the interim study
29 committee on fiscal policy on or before November 1, 2026.

30 (f) This SECTION expires July 1, 2027.

31 SECTION 17. [EFFECTIVE UPON PASSAGE] (a) The
32 department of local government finance shall prepare a report
33 regarding the creation of a standard Internet user portal through
34 which taxpayers may make property tax payments on at least a
35 monthly basis by means of an electronic funds transfer. The report
36 must contain the following information:

37 (1) The number of counties that allow monthly payments and
38 if the payments are made by an electronic funds transfer.

39 (2) The cost to the county to purchase the software necessary
40 to create the portal.

41 (3) Whether the county charges the user a fee.

42 (4) The percentage of taxpayers that pay property taxes on a



1 monthly basis.
2 **(5) How the county confirms that the property taxes are paid**
3 **timely.**
4 **In compiling the report, the department of local government**
5 **finance shall also solicit bids from at least three (3) vendors to**
6 **obtain estimates of the cost to the department of local government**
7 **finance to purchase the software needed to allow for monthly**
8 **payments and if there would be an additional cost for a county to**
9 **obtain a license to use the software.**
10 **(b) The department of local government finance shall present**
11 **the report prepared under subsection (a) to the interim study**
12 **committee on fiscal policy on or before November 1, 2026.**
13 **(c) This SECTION expires July 1, 2027.**
14 **SECTION 18. [EFFECTIVE UPON PASSAGE] (a) The**
15 **department of local government finance shall prepare a report for**
16 **the interim study committee on fiscal policy that identifies**
17 **alternatives to:**
18 **(1) the annual adjustment or trending process; and**
19 **(2) the use of cost tables;**
20 **in property assessment under current law.**
21 **(b) The department of local government finance shall present**
22 **the report prepared under subsection (a) to the interim study**
23 **committee on fiscal policy on or before November 1, 2026.**
24 **(c) This SECTION expires July 1, 2027.**
25 **SECTION 19. An emergency is declared for this act.**



COMMITTEE REPORT

Mr. President: The Senate Committee on Tax and Fiscal Policy, to which was referred Senate Bill No. 163, has had the same under consideration and begs leave to report the same back to the Senate with the recommendation that said bill be AMENDED as follows:

Page 1, between the enacting clause and line 1, begin a new paragraph and insert:

"SECTION 1. IC 6-1.1-4-15, AS AMENDED BY P.L.146-2008, SECTION 69, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE UPON PASSAGE]: Sec. 15. (a) If real property is subject to assessment or reassessment under this chapter, the assessor of the township in which the property is located, or the county assessor if there is no township assessor for the township, shall either appraise the property or have it appraised.

(b) In order to determine the assessed value of buildings and other improvements, the township or county assessor or the assessor's authorized representative may, after first making known the assessor's or representative's intention to the owner or occupant, enter and fully examine all buildings and structures which are located within the township or county and which are subject to assessment. **However, the township or county assessor or the assessor's authorized representative shall not enter any buildings and structures without first receiving the permission of the owner or occupant to enter the building or structure. Notwithstanding any other provision to the contrary, a county property tax assessment board of appeals or the Indiana board of tax review shall not issue an order (including an order issued under 52 IAC 4-8-3) authorizing entry onto a taxpayer's property without the owner's or occupant's permission."**

Page 3, between lines 36 and 37, begin a new paragraph and insert:

"SECTION 2. IC 6-1.1-13-13, AS AMENDED BY P.L.174-2022, SECTION 29, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE UPON PASSAGE]: Sec. 13. (a) This section applies to both residential real property and commercial property, with an assessed value of three million dollars (\$3,000,000) or less, for which the assessed value was increased for a tax year by an assessing official for any reason other than by the application of the annual adjustment factor used by the assessing official to adjust property values for that year. However, this section does not apply to an assessment if the assessment is based on:

- (1) structural improvements;
- (2) zoning; or
- (3) uses;

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that were not considered in the assessment for the prior tax year.

(b) If the taxpayer:

- (1) appeals an increased assessment as described in subsection (a) to the county property tax assessment board of appeals or the Indiana board; and
- (2) prevails in an appeal described in subdivision (1) or any resulting subsequent appeal of the increased assessment described in subsection (a);

the assessing official shall not increase the assessed value of the property until the first year of the next four (4) year cyclical assessment cycle for any reason other than by application of the annual adjustment factor used by the assessing official to adjust property values for a tax year. During this period, the taxpayer may not appeal an increased assessment made by the assessor unless the taxpayer believes that the increased assessment is arbitrary and capricious and not made consistent with the annual adjustment factor used by the assessing official to adjust property values for a tax year. If the taxpayer does appeal during this period on the grounds that the increased assessment is arbitrary and capricious and not made consistent with the annual adjustment factor used by the assessing official to adjust property values for a tax year, the ~~provision shifting the burden to the~~ assessing official **has the burden** to prove that the assessment is correct under ~~IC 6-1.1-15-17.2(d) (before its repeal) or IC 6-1.1-15-20. does not~~ apply.

(c) This section does not apply if:

- (1) the reduction in assessed value is the result of a settlement agreement between the taxpayer and the assessing official; or
- (2) the appeal is based on a correction of error under IC 6-1.1-15-1.1(a) and IC 6-1.1-15-1.1(b).

(d) If the taxpayer who appealed an increased assessment under this section sells the property, whose assessment was appealed, for fair market value, notwithstanding subsection (b), the assessor may reassess the property that was sold."

Page 5, delete lines 41 through 42.

Page 6, delete lines 1 through 19, begin a new paragraph and insert:

"(j) In an appeal following the date of assessment under IC 6-1.1-2-1.5 for residential property:

- (1) no additional information may be introduced by a county assessor in determining the appeal beyond the information:**
 - (A) used by the county assessor or third party contractor on the assessment date to determine the assessment for the given assessment year;**



(B) that is included in the property tax statement for the given assessment year or the notice of assessment for the given assessment year; and

(C) that is furnished to the taxpayer for the given assessment year; and

(2) a county assessor shall not introduce or rely on any information not used to determine the assessment on the assessment date for the given assessment year, including any information from a third party contractor.

For purposes of this subsection, an appeal includes a preliminary informal meeting under section 1.2(a) of this chapter.

SECTION 4. IC 6-1.1-15-1.2, AS AMENDED BY P.L.9-2024, SECTION 168, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE UPON PASSAGE]: Sec. 1.2. (a) A county or township official who receives a written notice under section 1.1 of this chapter shall schedule, at a time during business hours that is convenient to the taxpayer, a preliminary informal meeting with the taxpayer in order to resolve the appeal. If the taxpayer raises a claim regarding a matter that is in the discretion of the county auditor, the informal meeting must include the county auditor. At the preliminary informal meeting, in order to facilitate understanding and the resolution of disputed issues:

(1) a county or township official;

(2) the county auditor, if the matter is in the discretion of the county auditor; and

(3) the taxpayer;

shall exchange the information that each party is relying on at the time of the preliminary informal meeting to support the party's respective position on each disputed issue concerning the assessment or deduction. If additional information is obtained by the county or township official, the county auditor, or the taxpayer after the preliminary informal meeting and before the hearing held by the county board, the party obtaining the information shall provide the information to the other party. If the county or township official, the county auditor, or the taxpayer obtains additional information and provides the information to the other party for the first time at the hearing held by the county board, the county board, unless waived by the receiving party, shall continue the hearing until a future hearing date of the county board so that the receiving party has an opportunity to review all the information that the offering party is relying on to support the offering party's positions on the disputed issues concerning the assessment or deduction.

(b) The official shall report on a form prescribed by the department



of local government finance the results of the informal meeting. If the taxpayer and the official agree on the resolution of all issues in the appeal, the report shall state the agreed resolution of the matter and be signed by the official and the taxpayer. If an informal meeting is not held, or the informal meeting is unsuccessful, the official shall report those facts on the form. The official shall forward the report on the informal meeting to the county board.

(c) If the county board receives a report on the informal meeting indicating an agreed resolution of the matter, the county board shall vote to accept or deny the agreed resolution. If the county board accepts the agreed resolution, the county board shall issue a notification of final assessment determination adopting the agreed resolution and vacating the hearing if scheduled.

(d) The county board, upon receipt of a written notice under section 1.1 of this chapter, shall hold a hearing on the appeal not later than one hundred eighty (180) days after the filing date of the written notice. The county board shall, by mail, give at least thirty (30) days notice of the date, time, and place fixed for the hearing to the taxpayer, the county or township official with whom the taxpayer filed the written notice, and the county auditor. If the county board has notice that the taxpayer is represented by a third person, any hearing notice shall be mailed to the representative.

(e) If good cause is shown, the county board shall grant a request for continuance filed in writing at least ten (10) days before the hearing, and reschedule the hearing under subsection (d).

(f) A taxpayer may withdraw an appeal by filing a written request at least ten (10) days before the hearing. The county board shall issue a notification of final assessment determination indicating the withdrawal and no change in the assessment. A withdrawal waives a taxpayer's right to appeal to the Indiana board.

(g) The county board shall determine an appeal without a hearing if requested by the taxpayer in writing at least twenty (20) days before the hearing.

(h) If a taxpayer appeals the assessment of tangible property under section 1.1 of this chapter, the taxpayer is not required to have an appraisal of the property in order to initiate the appeal or prosecute the appeal. If the taxpayer presents an appraisal to the county board that:

- (1) is prepared by a certified appraiser in compliance with the Uniform Standards of Professional Appraisal Practice to determine the market value in use;
- (2) is addressed to the property owner or the assessor's office;
- (3) is commissioned for the purpose of the assessment appeal; and



(4) has an effective date that is the same date as the date of the assessment that is the subject of the appeal;

the value of the property contained in the appraisal is presumed to be correct. If the county board disagrees with the taxpayer's appraisal, the county board may seek review of the appraisal by a third party independent certified appraiser or obtain an independent appraisal report conducted by a certified appraiser in compliance with the Uniform Standards of Professional Appraisal Practice. If the county board's appraisal differs from the taxpayer's appraisal, the county board shall weigh the evidence and determine the true tax value of the property based on the totality of the probative evidence before the county board. The county board's determination of the property's true tax value may be higher or lower than the assessment but may not be lower than the lowest appraisal presented to or obtained by the county board, or higher than the highest appraisal presented to or obtained by the county board. After the assignment of value, the parties shall retain their rights to appeal the assessment or assessments to the Indiana board, which must hear the appeal de novo.

(i) At a hearing under subsection (d), the taxpayer shall have the opportunity to present testimony and evidence regarding the matters on appeal. If the matters on appeal are in the discretion of the county auditor, the county auditor or the county auditor's representative shall attend the hearing. A county or township official, or the county auditor or the county auditor's representative, shall have an opportunity to present testimony and evidence regarding the matters on appeal. The county board may adjourn and continue the hearing to a later date in order to make a physical inspection or consider the evidence presented. **However, the county board or assessing official shall not enter a property to conduct a physical inspection without first receiving the permission of the taxpayer to enter the property to make the physical inspection. Notwithstanding any other provision to the contrary, the county board shall not issue an order (including an order issued under 52 IAC 4-8-3) authorizing entry onto a taxpayer's property without the taxpayer's permission.**

(j) The county board shall determine the assessment by motion and majority vote. Except as provided in subsection (m), a county board may, based on the evidence before it, increase an assessment. The county board shall issue a written decision. Written notice of the decision shall be given to the township official, county official, county auditor, and the taxpayer.

(k) If more than one hundred eighty (180) days have passed since the date the notice of appeal was filed, and the county board has not



issued a determination, a taxpayer may initiate any appeal with the Indiana board of tax review under section 3 of this chapter.

(l) The county assessor may assess a penalty of fifty dollars (\$50) against the taxpayer if the taxpayer or representative fails to appear at a hearing under subsection (d) and, under subsection (e), the taxpayer's request for continuance is denied, or the taxpayer's request for continuance, request for the board to take action without a hearing, or withdrawal is not timely filed. A taxpayer may appeal the assessment of the penalty to the Indiana board or directly to the tax court. The penalty may not be added as an amount owed on the property tax statement under IC 6-1.1-22 or IC 6-1.1-22.5.

(m) The determination of an appealed assessed value of tangible property by a county or township official resulting from an informal meeting under subsection (a), or by a county board resulting from an appeal hearing under subsection (d), may be less than or equal to the tangible property's original appealed assessed value at issue, but may not exceed the original appealed assessed value at issue. However, an increase in assessed value that is attributable to substantial renovation, new improvements, zoning change, or use change is excluded from the limitation under this subsection.

SECTION 5. IC 6-1.1-15-4, AS AMENDED BY P.L.230-2025, SECTION 40, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE UPON PASSAGE]: Sec. 4. (a) After receiving a petition for review which is filed under section 3 of this chapter, the Indiana board shall conduct a hearing at its earliest opportunity. The Indiana board may correct any errors related to a claim under section 1.1 of this chapter that is within the jurisdiction of the Indiana board under IC 6-1.5-4-1.

(b) If the Indiana board conducts a site inspection of the property as part of its review of the petition, the Indiana board shall give notice to all parties of the date and time of the site inspection. **However, the Indiana board shall not enter a property to conduct a site inspection of the property without first receiving the permission of the taxpayer to enter the property to make the site inspection. Notwithstanding any other provision to the contrary, the Indiana board shall not issue an order (including an order issued under 52 IAC 4-8-3) authorizing entry onto a taxpayer's property without the taxpayer's permission.** The Indiana board is not required to assess the property in question. The Indiana board shall give notice of the date fixed for the hearing, by mail, to the parties or a party's representative. The Indiana board shall give these notices at least thirty (30) days before the day fixed for the hearing unless the parties agree to a shorter period. With respect to a petition for review filed by a county assessor,



the county board that made the determination under review under this section may file an amicus curiae brief in the review proceeding under this section. The expenses incurred by the county board in filing the amicus curiae brief shall be paid from the property reassessment fund under IC 6-1.1-4-27.5 of the county in which the property is located. The executive of a taxing unit may file an amicus curiae brief in the review proceeding under this section if the property that is the subject of the appeal is subject to assessment by that taxing unit.

(c) If a petition for review does not comply with the Indiana board's instructions for completing the form prescribed under section 3 of this chapter, the Indiana board shall serve a notice describing the defect in the petition. The petitioner then has thirty (30) days from the date on the notice to cure the defect and file a corrected petition. The Indiana board shall deny a corrected petition for review if it does not substantially comply with the Indiana board's instructions for completing the form prescribed under section 3 of this chapter.

(d) After the hearing, the Indiana board shall give the parties and any entity that filed an amicus curiae brief, or their representatives:

- (1) notice of its final determination; and
- (2) for parties entitled to appeal the final determination, notice of the procedures they must follow in order to obtain court review under section 5 of this chapter.

(e) The Indiana board shall conduct a hearing not later than one (1) year after a petition in proper form is filed with the Indiana board.

(f) The Indiana board shall issue a determination not later than the later of:

- (1) ninety (90) days after the hearing; or
- (2) the date set in an extension order issued by the Indiana board. The board may not extend the date by more than one hundred eighty (180) days.

(g) The time periods described in subsections (e) and (f) do not include any period of time that is attributable to a party's:

- (1) request for a continuance, stay, extension, or summary disposition;
- (2) consent to a case management order, stipulated record, or proposed hearing date;
- (3) failure to comply with the board's orders or rules; or
- (4) waiver of a deadline.

(h) If the Indiana board fails to take action required under subsection (e) or (f), the entity that initiated the petition may:

- (1) take no action and wait for the Indiana board to hear the matter and issue a final determination; or



(2) petition for judicial review under section 5 of this chapter.

(i) This subsection applies when the board has not held a hearing.

A person may not seek judicial review under subsection (h)(2) until:

(1) the person requests a hearing in writing; and

(2) sixty (60) days have passed after the person requests a hearing under subdivision (1) and the matter has not been heard or otherwise extended under subsection (g).

(j) A final determination must include separately stated findings of fact for all aspects of the determination. Findings of ultimate fact must be accompanied by a concise statement of the underlying basic facts of record to support the findings. Findings must be based exclusively upon the evidence on the record in the proceeding and on matters officially noticed in the proceeding. Findings must be based upon a preponderance of the evidence.

(k) The Indiana board may limit the scope of the appeal to the issues raised in the petition and the evaluation of the evidence presented to the county board in support of those issues only if all parties participating in the hearing required under subsection (a) agree to the limitation. A party participating in the hearing required under subsection (a) is entitled to introduce evidence that is otherwise proper and admissible without regard to whether that evidence has previously been introduced at a hearing before the county board.

(l) The Indiana board may require the parties to the appeal:

(1) to file not more than five (5) business days before the date of the hearing required under subsection (a) documentary evidence or summaries of statements of testimonial evidence; and

(2) to file not more than fifteen (15) business days before the date of the hearing required under subsection (a) lists of witnesses and exhibits to be introduced at the hearing.

(m) A party to a proceeding before the Indiana board shall provide to all other parties to the proceeding the information described in subsection (l) if the other party requests the information in writing at least ten (10) days before the deadline for filing of the information under subsection (l).

(n) The Indiana board may base its final determination on a stipulation between the respondent and the petitioner. If the final determination is based on a stipulated assessed valuation of tangible property, the Indiana board may order the placement of a notation on the permanent assessment record of the tangible property that the assessed valuation was determined by stipulation. The Indiana board may:

(1) order that a final determination under this subsection has no



precedential value; or

(2) specify a limited precedential value of a final determination under this subsection.

(o) If a party to a proceeding, or a party's authorized representative, elects to receive any notice under this section electronically, the notice is considered effective in the same manner as if the notice had been sent by United States mail, with postage prepaid, to the party's or representative's mailing address of record.

(p) At a hearing under this section, the Indiana board shall admit into evidence an appraisal report, prepared by an appraiser, unless the appraisal report is ruled inadmissible on grounds besides a hearsay objection. This exception to the hearsay rule shall not be construed to limit the discretion of the Indiana board, as trier of fact, to review the probative value of an appraisal report.

SECTION 6. IC 6-1.1-15-6, AS AMENDED BY P.L.121-2019, SECTION 8, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE UPON PASSAGE]: Sec. 6. (a) Except with respect to a petition filed under section 5(g) of this chapter, if a petition for judicial review is initiated by a person under section 5 of this chapter, the Indiana board shall prepare a certified record of the proceedings related to the petition. The Indiana board shall file a notice of completion with the clerk of the tax court within forty-five (45) days after the filing of the petition indicating that the certified record of the proceedings is complete. If the Indiana board is unable to timely complete the Indiana board's preparation of the certified record of proceedings, the Indiana board shall file a statement with the clerk of the tax court providing the reasons for the delay and the date the Indiana board will complete the preparation. If the reasons for the delay are due to circumstances within the Indiana board's control, the tax court may issue a revised due date for the Indiana board to file the notice of completion. If the reasons for the delay are due to circumstances within the control of the petitioner, the case may be subject to dismissal.

(b) The record for judicial review required under subsection (a) must include the following documents and items:

(1) Copies of all papers submitted to the Indiana board during the course of the action and copies of all papers provided to the parties by the Indiana board. For purposes of this subdivision, the term "papers" includes, without limitation, all notices, petitions, motions, pleadings, orders, orders on rehearing, briefs, requests, intermediate rulings, photographs, and other written documents.

(2) Evidence received or considered by the Indiana board.

~~(3) A statement of whether a site inspection was conducted, and;~~



if a site inspection was conducted, either:

- (A) a summary report of the site inspection; or
- (B) a videotape transcript of the site inspection.
- (4) (3) A statement of matters officially noticed.
- (5) (4) Proffers of proof and objections and rulings on them.
- (6) (5) Copies of proposed findings, requested orders, and exceptions.
- (7) (6) Either:
 - (A) a transcription of the audio tape of the hearing; or
 - (B) a transcript of the hearing prepared by a court reporter.

Copies of exhibits that, because of their nature, cannot be incorporated into the certified record must be kept by the Indiana board until the appeal is finally terminated. However, this evidence must be briefly named and identified in the transcript of the evidence and proceedings.

(c) Except with respect to a petition filed under section 5(g) of this chapter, if the tax court judge finds that:

- (1) a report of all or a part of the evidence or proceedings at a hearing conducted by the Indiana board was not made; or
- (2) a transcript is unavailable;

a party to the appeal initiated under section 5 of this chapter may, at the discretion of the tax court judge, prepare a statement of the evidence or proceedings. The statement must be submitted to the tax court and also must be served on all other parties. A party to the proceeding may serve objections or prepare amendments to the statement not later than ten (10) days after service.

SECTION 4. IC 6-1.1-15-17.3, AS AMENDED BY P.L.178-2021, SECTION 3, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE UPON PASSAGE]: Sec. 17.3. (a) As used in this section, "tax official" means:

- (1) a township assessor;
- (2) a county assessor;
- (3) a county auditor;
- (4) a county treasurer;
- (5) a member of a county board; or
- (6) any employee, contract employee, or independent contractor of an individual described in subdivisions (1) through (5).

(b) Except as provided in subsection (c), a tax official in a county may not serve as a tax representative of any taxpayer with respect to property subject to property taxes in the county before the county board of that county or the Indiana board. The prohibition under this subsection applies regardless of whether or not the individual receives any compensation for the representation or assistance.



(c) Subsection (b) does not:

(1) prohibit a contract employee or independent contractor of a tax official from serving as a tax representative before the county board or Indiana board for a taxpayer with respect to property subject to property taxes in the county unless the contract employee or independent contractor personally and substantially participated in the assessment of the property; or

(2) prohibit an individual from appearing before the county board or Indiana board regarding property owned by the individual.

(d) An individual who is a former county assessor, former township assessor, former employee or contract employee of a county assessor or township assessor, or an independent contractor formerly employed by a county assessor or township assessor may not serve as a tax representative for or otherwise assist another person in an assessment appeal before a county board or the Indiana board if:

(1) the appeal involves the assessment of property located in:

(A) the county in which the individual was the county assessor or was an employee, contract employee, or independent contractor of the county assessor; or

(B) the township in which the individual was the township assessor or was an employee, contract employee, or independent contractor of the township assessor; and

(2) while the individual was the county assessor or township assessor, was employed by or a contract employee of the county assessor or the township assessor, or was an independent contractor for the county assessor or the township assessor, the individual personally and substantially participated in the assessment of the property.

The prohibition under this subsection applies regardless of whether the individual receives any compensation for the representation or assistance. However, this subsection does not prohibit an individual from appearing before the Indiana board or county board regarding property owned by the individual.

(e) The department shall prepare and make available to taxpayers a power of attorney form that allows the owner of property that is the subject of an appeal under this article to appoint a relative (as defined in IC 2-2.2-1-17) for specific assessment years to represent the owner concerning the appeal before the county board or the department of local government finance. A relative who is appointed by the owner of the property under this subsection:

(1) may represent the owner before the county board or the department of local government finance but not the Indiana board



concerning the appeal; and

(2) is not required to be certified as a tax representative in order to represent the owner concerning the appeal.

(f) Notwithstanding any other law, but subject to subsections (b) and (d) and IC 6-1.1-31.7-3.5, an individual may serve as a tax representative of any taxpayer concerning property subject to property taxes in the county:

(1) before the county board of that county, if:

(A) the individual is certified as a level two assessor-appraiser under IC 6-1.1-35.5; and

(B) the taxpayer ~~authorizes~~ **has provided written authorization, which may not be electronic and may not be effective for more than one (1) year, to** the individual to serve as the taxpayer's tax representative on a form that: ~~is:~~

(i) **is** prepared by the department of local government finance; ~~and~~

(ii) contains an attestation that the taxpayer has provided written authorization for the individual designated to serve as the taxpayer's tax representative; and

~~(ii)~~ **(iii) is** submitted with the taxpayer's notice to initiate an appeal; or

(2) before the county board of that county or the Indiana board, if:

(A) the individual is certified as a level three assessor-appraiser under IC 6-1.1-35.5; **and**

(B) the taxpayer has provided written authorization, which may not be electronic and may not be effective for more than one (1) year, to the individual to serve as the taxpayer's tax representative on a form that:

(i) is prepared by the department of local government finance;

(ii) contains an attestation that the taxpayer has provided written authorization for the individual designated to serve as the taxpayer's tax representative; and

(iii) is submitted with the taxpayer's notice to initiate an appeal.

The taxpayer must also have a signed agreement with the individual designated to serve as the taxpayer's tax representative which must be attested to by the taxpayer as required under subdivisions (1) and (2).

SECTION 5. IC 6-1.1-15-20, AS ADDED BY P.L.174-2022,



SECTION 34, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE UPON PASSAGE]: Sec. 20. (a) In an appeal under this chapter, ~~except as provided in subsection (b);~~ the assessment as last determined by an assessing official or the county board is presumed to be equal to the property's true tax value until rebutted by evidence presented by the parties:

~~(b)~~ If a property's assessment increased more than five percent (5%) over the property's assessment for the prior tax year, then the assessment is no longer presumed to be equal to the property's true tax value, and the assessing official has the burden of proof.

~~(c)~~ ~~(b)~~ For purposes of this chapter, an assessment for a prior tax year means the final value:

- (1) as last corrected by an assessing official;
- (2) as stipulated or settled by the taxpayer and the assessing official; or
- (3) as determined by a reviewing authority.

~~(d)~~ Subsection (b) does not apply if the increase in the assessment on appeal is based on:

- ~~(1)~~ substantial renovations or new improvements;
- ~~(2)~~ zoning; or
- ~~(3)~~ uses;

that were not considered in the assessment for the prior tax year.

~~(e)~~ ~~(c)~~ Both parties in an appeal under this chapter may present evidence of the true tax value of the property, seeking to decrease or increase the assessment.

~~(f)~~ ~~(d)~~ In an appeal under this chapter, the Indiana board shall, as trier of fact, weigh the evidence and decide the true tax value of the property as compelled by the totality of the probative evidence before it. The Indiana board's determination of the property's true tax value may be higher or lower than the assessment or the value proposed by a party or witness. ~~If the totality of the evidence presented to the Indiana board is insufficient to determine the property's true tax value in an appeal governed by subsection (a); then the property's assessment is presumed to be equal to the property's true tax value.~~ If the totality of the evidence presented to the Indiana board is insufficient to determine the property's true tax value in an appeal, ~~governed by subsection (b);~~ then the property's prior year assessment is presumed to be equal to the property's true tax value.

~~(g)~~ ~~(e)~~ The Indiana board shall hear its matters without regard to motions related to notice pleading or judgments on the evidence.

~~(h)~~ This section applies only to appeals filed after the effective date of this section as added by HEA 1260-2022."



Page 7, delete lines 29 through 32, begin a new paragraph and insert:

"Sec. 1. As used in this chapter, "first time home buyer" means an individual who is buying a home in Indiana for the first time and who has not had an ownership interest in a home at any time preceding the date on which the individual purchases a home. The term includes a married couple if one (1) spouse satisfies the definition set forth in this section."

Page 13, between lines 36 and 37, begin a new paragraph and insert:

"SECTION 18. IC 36-2-15-12 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE UPON PASSAGE]: Sec. 12. A county assessor shall not enter a property to conduct a physical inspection of a property without first receiving the permission of the property owner to enter the property to make the physical inspection. Notwithstanding any other provision to the contrary, a county property tax assessment board of appeals or the Indiana board of tax review shall not issue an order (including an order issued under 52 IAC 4-8-3) authorizing entry onto a taxpayer's property without the property owner's permission."

Page 14, between lines 11 and 12, begin a new paragraph and insert:

"SECTION 15. [EFFECTIVE UPON PASSAGE] (a) The department of local government finance shall prepare a report regarding the creation of a standard Internet user portal through which taxpayers may make property tax payments on at least a monthly basis by means of an electronic funds transfer. The report must contain the following information:

- (1) The number of counties that allow monthly payments and if the payments are made by an electronic funds transfer.**
- (2) The cost to the county to purchase the software necessary to create the portal.**
- (3) Whether the county charges the user a fee.**
- (4) The percentage of taxpayers that pay property taxes on a monthly basis.**
- (5) How the county confirms that the property taxes are paid timely.**

In compiling the report, the department of local government finance shall also solicit bids from at least three (3) vendors to obtain estimates of the cost to the department of local government finance to purchase the software needed to allow for monthly payments and if there would be an additional cost for a county to obtain a license to use the software.



(b) The department of local government finance shall present the report prepared under subsection (a) to the interim study committee on fiscal policy on or before November 1, 2026.

(c) This SECTION expires July 1, 2027.

SECTION 16. [EFFECTIVE UPON PASSAGE] (a) IC 6-1.1-15-20, as amended by this act, applies as follows:

(1) To an appeal filed under IC 6-1.1-15 on or after the effective date of this act.

(2) To an appeal filed under IC 6-1.1-15 before the effective date of this act that is pending on the effective date of this act.

(b) This SECTION expires December 31, 2028."

Renumber all SECTIONS consecutively.

and when so amended that said bill do pass.

(Reference is to SB 163 as introduced.)

HOLDMAN, Chairperson

Committee Vote: Yeas 10, Nays 0.

SENATE MOTION

Mr. President: I move that Senate Bill 163 be amended to read as follows:

Page 4, delete lines 16 through 42.

Page 5, delete lines 1 through 18.

Page 16, line 41, delete "may not be electronic" and insert "**may be by electronic means**".

Page 17, line 14, delete "may not be electronic" and insert "**may be by electronic means**".

Page 17, delete lines 29 through 42.

Page 18, delete lines 1 through 29.

Page 27, delete lines 18 through 24, begin a new paragraph and insert:

"SECTION 18. [EFFECTIVE UPON PASSAGE] (a) The department of local government finance shall prepare a report for the interim study committee on fiscal policy that identifies alternatives to:

(1) the annual adjustment or trending process; and

(2) the use of cost tables;

in property assessment under current law.

SB 163—LS 6760/DI 120



(b) The department of local government finance shall present the report prepared under subsection (a) to the interim study committee on fiscal policy on or before November 1, 2026.

(c) This SECTION expires July 1, 2027."

Renumber all SECTIONS consecutively.

(Reference is to SB 163 as printed January 21, 2026.)

ROGERS

